

Early and Safe Return to Work Policy

Policy Summary & Knowledge Check

Authority	Board of Directors
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Previous Amendments	February 16, 2018; October 30, 2012

Policy Summary

Created under the Human Resources Directive of Council, this policy establishes and communicates the responsibilities of the USC and its employees after a work-related injury or illness, with respect to returning to work. Guided by the Ontario Workplace Safety and Insurance Act, its primary objective is to ensure an early and safe return to work. It applies to all USC employees, both unionized and non-unionized, and management, and covers both work and non-work-related injuries and illnesses. It sets out detailed roles for the Employer, Employee, Senior Manager/People and Development (as Early and Safe Return to Work Coordinator), Employee Supervisor, Co-workers, WSIB, the treating Healthcare Professional, and the Union, along with procedures for injury reporting, ongoing communication, re-employment obligations, dispute resolution, and committee review.

Key Takeaways

- Applies to all USC employees, unionized and non-unionized, and management, covering both work-related and non-work-related injuries and illnesses; it is independent of the separate Workplace Accident Investigation Policy & Procedures.
- The USC will investigate potentially fraudulent claims; any claim found fraudulent results in progressive discipline up to and including termination, and is reported to WSIB immediately.
- The Senior Manager, People and Development acts as the Early and Safe Return to Work Coordinator, promptly reports work-related injuries/illnesses to WSIB, completes required WSIB forms, and reports wage changes, changes in duties/duration, failure to cooperate, and end of program to WSIB.
- Communication responsibility depends on how long the absence is expected to last: the employee's supervisor maintains contact for absences expected to be short-term (not exceeding five days); once an absence exceeds or is expected to exceed five days, the Senior Manager, People and Development takes over communications, generally on at least a weekly basis.
- Employees must know and follow safety policies, report injury/illness immediately, keep their treating healthcare professional informed of available return-to-work options, cooperate with the employer, attend medical/rehabilitation appointments and independent assessments as requested, and notify the USC of material changes to their recovery status or income.
- "Suitable work" must be available and able to start quickly, safe and within the employee's physical capabilities, use skills the employee already has or can attain, and restore pre-injury/illness earnings as much as reasonably possible; an employee need not be fully recovered before returning, even in a reduced or different capacity.
- The USC recognizes a duty to re-employ an individual who cannot perform their pre-injury/illness work, making every effort to find suitable work until the earliest of: 12 months after being declared fit to return, 24 months after the date of the injury/illness, the employee taking permanent work elsewhere, or the employee turning 65.
- Disputes about fulfillment of this policy may initially be directed to the Chief Operating Officer, and if unresolved, to the Ontario Workplace Safety and Insurance Board for mediation; both the USC and the employee may face penalties for non-compliance under the Act.
- The Joint Health and Safety Committee monitors and discusses the effectiveness of the Early and Safe Return to Work program and makes recommendations to the Chief Operating Officer.

Knowledge Check

7 situational questions to check understanding of this policy. An answer key follows on the next page.

Q1. An employee's absence due to a work-related injury is expected to last only three days. Who is responsible for maintaining communication with them during this time?

- A. The Senior Manager, People and Development, on a weekly basis.
- B. The employee's supervisor.
- C. The WSIB case manager directly.
- D. The Joint Health and Safety Committee.

Q2. An employee's absence is now expected to exceed five days. Who takes over handling communications on behalf of the USC?

- A. The employee's supervisor continues to handle it alone.
- B. The Senior Manager, People and Development.
- C. The Union.
- D. WSIB directly.

Q3. An investigation determines that an employee's injury claim was fraudulent. What is the consequence under this policy?

- A. A verbal warning only, regardless of severity.
- B. Progressive discipline up to and including termination, and immediate reporting to WSIB.
- C. No formal consequence unless it happens more than once.
- D. The employee is simply removed from the return to work program with no further action.

Q4. An employer wants to offer an employee "suitable work" as part of a return to work plan. Which of the following is NOT one of the required characteristics of suitable work under this policy?

- A. It is available and can be started quickly.
- B. It requires entirely new skills unrelated to the employee's existing abilities.
- C. It is safe and within the employee's physical capabilities.
- D. It restores pre-injury/illness earnings as much as reasonably possible.

Q5. An employee sustains a work-related injury and is later declared fit to return to work in some capacity. At the latest, until what point must the USC continue making every effort to find suitable work?

- A. Six months after the injury occurred.
- B. The earlier of 12 months after being declared fit to return, or 24 months after the date of the injury/illness.
- C. Indefinitely, with no time limit.
- D. Only until the end of the calendar year in which the injury occurred.

Q6. An employee disagrees with how the USC has handled their return to work plan and wants to raise a dispute. What is the first step under this policy?

- A. File a complaint directly with WSIB.
- B. Direct the dispute initially to the Chief Operating Officer.
- C. Resign and reapply for the position.
- D. Contact the Joint Health and Safety Committee directly.

Q7. A worker on modified duties is asked by the employer to attend an independent medical assessment. What is expected of the employee?

- A. They may decline, since the request came from the employer rather than their own treating doctor.
- B. They must comply with the recommendations of treating healthcare professionals and attend independent assessments as requested.
- C. Only unionized employees are required to attend such assessments.
- D. They may attend only if compensated separately for their time.

Answer Key

Q1: B — Section 4.1.9 states that where an absence is expected to be short-term (not exceeding five days), communication is maintained through the employee's supervisor.

Q2: B — Section 4.1.9 states that if an absence exceeds or is expected to exceed five days, the Senior Manager, People and Development shall handle communications on behalf of the USC.

Q3: B — Section 1.3 states a claim deemed fraudulent will result in progressive discipline up to and including termination, and will be reported to WSIB immediately.

Q4: B — Section 5.1.1 defines suitable work as available and quick to start, safe and within physical capabilities, using skills the employee has or can attain, and restoring earnings — not requiring entirely unrelated new skills.

Q5: B — Section 5.2.1 states the USC will make every effort to find suitable work up until the earlier of 12 months after being declared fit to return, or 24 months after the injury/illness date (among other listed end points).

Q6: B — Section 6.1 states disputes regarding the fulfillment of this policy may initially be directed to the Chief Operating Officer.

Q7: B — Section 3.2.6 requires employees to comply with recommendations of treating healthcare professionals and attend independent assessments as requested.